

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gabriella Carpenter	Team: Squad #5	CCRB Case #: 201705909	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/14/2017 2:45 AM	Location of Incident: South Conduit Avenue and 89th Street	Precinct: 106	18 Mo. SOL 1/14/2019	EO SOL 1/14/2019	
Date/Time CV Reported Fri, 07/14/2017 2:49 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/20/2017 2:20 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Callaghan	12979	952529	106 PCT
2. POM John Arnold	31722	954502	106 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM John Arnold	Abuse: Police Officer John Arnold stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Michael Callaghan	Abuse: Police Officer Michael Callaghan stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM John Arnold	Abuse: Police Officer John Arnold refused to provide his name and shield number to § 87(2)(b)	
D.POM Michael Callaghan	Abuse: Police Officer Michael Callaghan refused to provide his name and shield number to § 87(2)(b)	
E.POM John Arnold	Abuse: Police Officer John Arnold threatened to arrest § 87(2)(b)	
F.POM Michael Callaghan	Abuse: Police Officer Michael Callaghan threatened to arrest § 87(2)(b)	

Case Summary

§ 87(2)(b) filed a complaint over the phone with the Internal Affairs Bureau on July 14, 2017, generating log number 17-27000. The complaint was received by the CCRB on July 20, 2017.

On July 14, 2017, at approximately 2:40 a.m., Police Officer John Arnold and Police Officer Michael Callaghan of the 106th Precinct pulled over § 87(2)(b)'s vehicle at South Conduit Avenue and 89th Street in Queens for a defective license plate light (**Allegation A and Allegation B: Abuse of Authority, exonerated**). According to § 87(2)(b) the officers both refused to provide their names and shield numbers (**Allegation C and Allegation D: Abuse of Authority, unsubstantiated**). According to the officers, both officers threatened to arrest § 87(2)(b) for obstructing government administration because he would not provide his license (**Allegation E and Allegation F: Abuse of Authority, exonerated**). The officers let § 87(2)(b) go with a warning after running his identification and seeing that he had no open warrants.

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer John Arnold stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority: Police Officer Michael Callaghan stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s license plate light was defective at the time of the incident (BR 01, BR 02, and BR 03).

Drivers are required to have a white light that illuminates the numerals on their license plate so that they are legible from at least fifty feet away. **NY Vehicle and Traffic Law 3.9.375.2a.4.**

§ 87(2)(g) it is recommended that **allegations A and B be closed as exonerated.**

Allegation C: Abuse of Authority: Police Officer John Arnold refused to provide his name and shield number to § 87(2)(b)

Allegation D: Abuse of Authority: Police Officer Michael Callaghan refused to provide his name and shield number to § 87(2)(b)

Allegation E: Abuse of Authority: Police Officer John Arnold threatened to arrest § 87(2)(b)

Allegation F: Abuse of Authority: Police Officer Michael Callaghan threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that PO Arnold approached his window and PO Callaghan approached the passenger side window. PO Arnold asked for § 87(2)(b)'s ID and § 87(2)(b) said that he wanted PO Arnold's name and badge number because he did not look like a police officer. PO Arnold said that he would explain why he had stopped § 87(2)(b) after he provided his ID. § 87(2)(b) asked for PO Arnold's name and shield number again so PO Arnold pulled his shield out of his shirt and shook it in § 87(2)(b)'s face for a second. § 87(2)(b) was not able to see the numbers while PO Arnold was shaking it, so he asked again for his name and shield number. PO Arnold did not respond. § 87(2)(b) called 911 and kept the line open for the rest of the stop. After § 87(2)(b) refused to provide his ID, PO Callaghan walked around to the driver's side and said,

“You’re arguing with us? You want to go to jail? Give me your ID right now!” PO Arnold asked § 87(2)(b) if he wanted to go to jail two or three times. § 87(2)(b) asked both officers for their names and shield numbers twice. The officers did not respond. The officers had asked for § 87(2)(b)s ID three or four times before he provided it.

The passenger in the car, § 87(2)(b) declined to participate in the investigation.

PO Callaghan testified that he approached the passenger side and PO Arnold approached the driver’s side. PO Callaghan realized that PO Arnold was struggling to get § 87(2)(b) to give him his license, so he walked over to the driver’s side to assist. PO Callaghan and PO Arnold asked § 87(2)(b) multiple times to give them his license but § 87(2)(b) refused and kept saying that he did not believe that the officers were actually police officers and needed proof. PO Callaghan and possibly PO Arnold told § 87(2)(b) multiple times that he could be arrested for obstructing governmental administration if he did not provide his license, and § 87(2)(b) eventually handed it to them. Both officers were wearing their shields around their necks. PO Callaghan could not recall if § 87(2)(b) ever asked either officer to show him their shields, but at one point PO Callaghan held his shield up so that he could see it. PO Callaghan did not remember § 87(2)(b) ever asking for the officers’ names or shield numbers but thought that he provided his name and shield number verbally without § 87(2)(b) asking. During the interview, PO Callaghan listened to the recording of the 911 call that § 87(2)(b) made during the incident and stated that he heard § 87(2)(b) on the recording asking the officers for their names but the officers were speaking at the same time and PO Callaghan was not sure what the officers had actually heard § 87(2)(b) say during the incident.

PO Arnold § 87(2)(g)

§ 87(2)(b) could not recall which side each officer initially approached; both officers held up their shields two arm-lengths away from § 87(2)(b) so that he could see them before § 87(2)(b) asked the officers for their names and shield numbers; and § 87(2)(b) asked the officers for their names and shield numbers multiple times after calling 911, and the officers provided the information verbally several times but § 87(2)(b) kept talking over them.

In the recording of the 911 call that § 87(2)(b) made during the incident, § 87(2)(b) can be heard saying to the operator and to the officers multiple times that the officers had not provided their names or shield numbers (BR 04). It sounds like the officers respond to him, but their voices are muffled and it is unclear whether they provide their names and shield numbers verbally in the recording.

If a driver fails or refuses to sufficiently identify himself, they may be arrested and charged with being an unlicensed operator or operating an unregistered vehicle. *People v. Bohn*, 397 N.Y.S.2d 514.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g) _____, it is recommended that **allegations C and D be closed as unsubstantiated.**

§ 87(2)(g) _____

_____. It is therefore recommended that **allegations E and F be closed as exonerated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) _____
- PO Arnold has been a member of the service for four years and has had four other CCRB allegations pled against him in one case, none of which were substantiated § 87(2)(g) _____
- PO Callaghan has been a member of the service for five years and has had seven other CCRB allegations pled against him in two cases, none of which were substantiated. § 87(2)(g) _____
 - One vehicle stop allegation was pled against him in CCRB 201706124 that was closed as complainant uncooperative.
 - One threat of arrest allegation was pled against him in CCRB 201706124 that was closed as complainant uncooperative.

Mediation, Civil and Criminal Histories

- This case was returned from mediation on December 22, 2017.
- This report was submitted pending a FOIL request sent to the comptroller's office on December 29, 2017 for any notice of claim filed in regard to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] _____

Squad No.: _____

Investigator: _____
Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____
Signature _____ Print Title & Name _____ Date _____

Reviewer: _____
Signature _____ Print Title & Name _____ Date _____